

1.

| CASE #      | CASE NAME                            | HEARING NAME                                         |
|-------------|--------------------------------------|------------------------------------------------------|
| CVPS2104906 | MARTINEZ ARITA VS HALO MEDICAL GROUP | SPECIAL MOTION BY DEPARTMENT OF HEALTH CARE SERVICES |

**Tentative Ruling:** No tentative ruling. Hearing is scheduled for 10.08.26.

2.

| CASE #      | CASE NAME                                                                                                                                                                     | HEARING NAME                                                                                                                                                                                                                                                                                             |
|-------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVPS2200362 | GREGORY SCOTT MCALLISTER, AN INDIVIDUAL VS R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005 | MOTION FOR RELIEF FROM JUDGMENT BY R. SCOTT KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005, KACI L. KINCAID, INDIVIDUALLY AND AS CO-TRUSTEES OF THE KINCAID FAMILY TRUST CREATED BY DECLARATION OF TRUST DATED AUGUST 5, 2005 |

**Tentative Ruling:** No tentative ruling. Hearing continued to 8.18.26.

3.

| CASE #      | CASE NAME                              | HEARING NAME                                                                 |
|-------------|----------------------------------------|------------------------------------------------------------------------------|
| CVPS2507831 | MORALES VS CHRISTOPHER PYLE, CPA, INC. | MOTION FOR LEAVE TO AMEND ON COMPLAINT OF CASTULA MORALES BY CASTULA MORALES |

**Tentative Ruling:** California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“if the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment

involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

The declaration of Plaintiff's attorney Jay S. Rothman indicates that upon receipt of discovery responses of Defendant Christopher Pyle, CPA, Inc., he became aware of additional issues to include in an amended complaint including alleged noncompliance with meal and rest breaks and incorrect wage statements (Declaration ¶¶ 4). These alleged deficiencies were discovered in May of 2026, and the proposed FAC addresses those issues. A red-line copy is attached to Plaintiff's motion outlining the changes in the complaint. The reasoning for not filing the motion earlier is "because no trial date has yet been set" (Declaration ¶¶ 9).

Defendants' opposition focuses on knowledge by Plaintiff, and that she should have/did know of the alleged deficiencies in 2023, yet the opposition fails to cite authority that the Plaintiff should be prohibited from amending based on her awareness of facts that could have been pleaded in the original complaint. Defendants' argument challenges the factual sufficiency of the FAC as well, although acknowledging it is not asking the court to adjudicate a demurrer in advance. (Opposition Section D).

The court finds a lack of prejudice by granting leave to amend. The court also finds that the redline copy is sufficient to comply with California Rule of Court § 3.1324. And while Plaintiff's statement is they didn't file the motion earlier because of lack of a trial date, it should be noted that according to the Declaration of Plaintiff's attorney, after the discovery received in May he attempted to obtain a stipulation from defense counsel. After that was rejected, the motion was filed on 7.30.26.

Plaintiff's Motion for Leave to File First Amended Complaint GRANTED.

Plaintiff to file the Proposed First Amended Complaint attached as Exhibit 1 to the Motion within 5 days.

Case Management Conference continued to 10.09.26.

4.

| CASE #      | CASE NAME                                 | HEARING NAME                                                          |
|-------------|-------------------------------------------|-----------------------------------------------------------------------|
| CVPS2600939 | SPRAGUE VS TILDEN-COIL CONSTRUCTORS, INC. | DEMURRER ON COMPLAINT OF JERRY SPRAGUE BY PROCRAFT CONSTRUCTION, INC. |

**Tentative Ruling:** A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material